AUGUR Digital Twin
Software License Agreement

Dual licensing framework: AUGUR Development License (ADL) and AUGUR Commercial License (ACL)

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Version	1.0
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Product	AUGUR Digital Twin
Repository / Distribution Site	https://pulsarhri.github.io/, https://prefix.dev/channels/@pulsarhri/pulsar-forge
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m. use Output internally for Development Purposes, subject to Section 9.

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Any Commercial Use requires a valid ACL under Section 4.

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g. redistribution rights;

h. support or maintenance level;

i. permitted affiliates;

j. field of use;

k. confidentiality or security requirements; and

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If applicable law grants Licensee a mandatory right to perform acts otherwise restricted under this Agreement, Licensee shall exercise such right only to the extent strictly required by applicable law and, where legally permissible, only after providing Licensor reasonable prior written notice and an opportunity to provide the necessary information under reasonable terms.

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Any update or new version of the AUGUR Materials shall be subject to this Agreement unless Licensor provides different terms with that update or version.

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8.3 Compliance

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Unless expressly stated in a Commercial Agreement, the AUGUR Materials are not certified for use in safety-critical, mission-critical, life-critical, medical, aviation, automotive, railway, nuclear, military, emergency response or other regulated systems.

14.3 Live Control

Licensee shall not use the AUGUR Materials to directly or indirectly control live hardware, robots, actuators, machinery or production systems in a manner that could cause physical harm, property damage or

regulatory non-compliance unless expressly authorized under a Commercial Agreement and subject to appropriate safety controls.

14.4 Licensee Responsibility

Licensee is solely responsible for validating, testing and certifying its own products, systems, software, hardware, integrations, assumptions, outputs and deployment decisions.

15. Security

Licensee shall implement reasonable technical and organizational measures to protect the AUGUR Materials from unauthorized access, use, disclosure, copying, distribution or modification.

Licensee shall promptly notify Licensor if it becomes aware of unauthorized access to or use of the AUGUR Materials, or of any vulnerability that could materially affect the security or integrity of the AUGUR Materials.

Licensee shall not publicly disclose vulnerabilities in the AUGUR Materials without first providing Licensor a reasonable opportunity to investigate and remediate them, unless otherwise required by law.

16. Term

16.1 ADL Term

The ADL begins when Licensee first downloads, installs, accesses, executes or uses the AUGUR Materials and continues until terminated under this Agreement.

16.2 ACL Term

The ACL begins and ends according to the applicable Commercial Agreement.

If no term is specified in the Commercial Agreement, the ACL remains in effect only for the period for which the applicable Fees have been paid.

17. Termination

17.1 Termination for Breach

Licensor may terminate this Agreement and any license granted under it immediately upon written notice if Licensee breaches this Agreement or any Commercial Agreement.

17.2 Suspension

Licensor may immediately suspend Licensee's access to or use of all or any part of the AUGUR Materials, without liability and without prejudice to Licensor's termination rights, upon suspected breach of this Agreement or any Commercial Agreement, unauthorized Commercial Use, any security or integrity risk, any export control or sanctions issue, or non-payment of Fees or other amounts due under any Commercial Agreement.

17.3 Automatic Termination

Licensee's rights under this Agreement automatically terminate if Licensee:

a. uses the AUGUR Materials for Commercial Use without a valid ACL;

b. reverse engineers, decompiles, disassembles, extracts or attempts to reconstruct the AUGUR Materials;

c. redistributes the AUGUR Materials to third parties without authorization;

d. fails to pay Fees due under a Commercial Agreement;

e. violates the restrictions in Section 5; or

f. brings or threatens to bring an intellectual property claim alleging that the AUGUR Materials infringe Licensee's rights, except for claims based on a breach of an express written agreement by Licensor.

17.4 Termination by Licensee

Licensee may terminate the ADL at any time by ceasing all use of the AUGUR Materials and deleting or destroying all copies under its control.

17.5 Effect of Termination

Upon termination, Licensee shall immediately:

a. cease all use of the AUGUR Materials;

b. delete or destroy all copies of the AUGUR Materials in its possession or control;

c. remove the AUGUR Materials from development systems, CI/CD systems, caches, containers, artifact repositories and workstations;

d. cease all Commercial Use, if any; and

e. upon request, certify in writing that it has complied with this Section.

17.6 Archival Copies

Licensee may retain one archival copy solely to the extent required by law, internal compliance policy or bona fide backup procedures, provided that such copy is not used and remains subject to this Agreement.

17.7 Survival

Sections relating to ownership, restrictions, confidentiality, feedback, fees, audit, disclaimers, limitation of liability, indemnity, termination effects, governing law and any other provisions that by their nature should survive shall survive termination.

18. Fees, Taxes and Payment

This Section applies only where Licensee has entered into a Commercial Agreement.

18.1 Payment

Licensee shall pay all Fees in accordance with the applicable Commercial Agreement.

18.2 Taxes

Fees are exclusive of taxes unless expressly stated otherwise.

Licensee is responsible for all taxes, duties, levies, withholdings and governmental charges arising from the Commercial Agreement, except taxes based on Licensor's net income.

18.3 Late Payment

If Licensee fails to pay undisputed Fees when due, Licensor may suspend or terminate the ACL, withhold support or updates, charge interest to the maximum extent permitted by law, and recover reasonable collection costs.

18.4 No Refunds

Fees are non-refundable unless expressly stated otherwise in the Commercial Agreement or required by applicable law.

19. Warranty Disclaimer

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE AUGUR MATERIALS ARE PROVIDED "AS IS" AND "AS AVAILABLE", WITH ALL FAULTS AND WITHOUT WARRANTY OF ANY KIND.

LICENSOR DISCLAIMS ALL WARRANTIES, CONDITIONS, REPRESENTATIONS AND GUARANTEES, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING WITHOUT LIMITATION WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, COMPLETENESS, RELIABILITY, AVAILABILITY, SECURITY, PERFORMANCE, COMPATIBILITY, INTEROPERABILITY, ERROR-FREE OPERATION AND FITNESS FOR SAFETY-CRITICAL USE.

LICENSOR DOES NOT WARRANT THAT THE AUGUR MATERIALS WILL MEET LICENSEE'S REQUIREMENTS, OPERATE WITHOUT INTERRUPTION, BE ERROR-FREE, BE SECURE, PRODUCE ACCURATE OR COMPLETE RESULTS, OR BE COMPATIBLE WITH ANY PARTICULAR HARDWARE, SOFTWARE, SYSTEM, PRODUCT, WORKFLOW, CI/CD ENVIRONMENT OR DEVELOPMENT TOOL.

ANY WARRANTIES, SERVICE LEVELS, SUPPORT COMMITMENTS OR REMEDIES APPLICABLE TO COMMERCIAL USE MUST BE EXPRESSLY SET OUT IN A COMMERCIAL AGREEMENT.

20. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LICENSOR SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE OR CONSEQUENTIAL DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, DATA, USE, PRODUCTION, CONTRACTS, SAVINGS, OPPORTUNITY OR REPUTATION, OR FOR BUSINESS INTERRUPTION, SYSTEM FAILURE, COMPUTER DAMAGE, COST OF SUBSTITUTE GOODS OR SERVICES, OR LOSS ARISING FROM PRODUCT FAILURE, SAFETY INCIDENTS, REGULATORY NON-COMPLIANCE OR THIRD-PARTY CLAIMS.

UNDER THE ADL, LICENSOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE AUGUR MATERIALS SHALL NOT EXCEED ONE HUNDRED EUROS (EUR 100).

UNDER THE ACL, UNLESS THE COMMERCIAL AGREEMENT STATES OTHERWISE, LICENSOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THE COMMERCIAL AGREEMENT, THIS AGREEMENT OR THE AUGUR MATERIALS SHALL NOT EXCEED THE FEES ACTUALLY PAID BY LICENSEE TO LICENSOR FOR THE AUGUR MATERIALS DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.

THE LIMITATIONS IN THIS SECTION APPLY REGARDLESS OF THE LEGAL THEORY, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, PRODUCT LIABILITY, STATUTE OR OTHERWISE, EVEN IF LICENSOR HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Nothing in this Agreement limits liability to the extent such limitation is prohibited by applicable law.

21. Indemnity

21.1 Licensee Indemnity

Licensee shall defend, indemnify and hold harmless Licensor, its affiliates, directors, officers, employees, contractors and licensors from and against any claims, damages, liabilities, losses, costs and expenses, including reasonable attorneys' fees, arising out of or relating to:

a. Licensee's use of the AUGUR Materials in breach of this Agreement or a Commercial Agreement;

b. unauthorized Commercial Use;

c. unauthorized redistribution or disclosure of the AUGUR Materials;

d. Licensee's products, services, systems, integrations, data, Output, deployments, decisions, safety incidents, regulatory findings, product recalls, bodily injury, death, property damage, cybersecurity incidents, or any third-party reliance on the AUGUR Materials, any Output or any results generated through Licensee's use or deployment of the AUGUR Materials;

e. use of the AUGUR Materials in safety-critical, regulated, production or live-control environments without authorization;

f. violation of applicable law by Licensee; or

g. infringement or misappropriation of third-party rights caused by Licensee's data, software, systems, modifications, integrations or use cases.

21.2 Commercial Indemnity by Licensor

Any indemnity by Licensor, including intellectual property indemnity, shall apply only if expressly set out in a Commercial Agreement.

22. Publicity

Licensee shall not issue press releases, public announcements, marketing materials, case studies or public statements referring to Licensor, ARQUIMEA, PULSAR HRI, AUGUR or the AUGUR Materials without Licensor's prior written consent, except as required by law or as necessary to reproduce required notices.

23. Assignment

Licensee may not assign, transfer, delegate or novate this Agreement, any Commercial Agreement or any rights or obligations under them without Licensor's prior written consent.

Any attempted assignment in violation of this Section is void.

Licensor may assign this Agreement to an affiliate or in connection with a merger, reorganization, sale of assets, financing, corporate restructuring or transfer of the AUGUR Materials or related business.

24. Notices

Notices to Licensor shall be sent only to the following contact details, or to any other contact details or legal notice designated by Licensor from time to time:

ARQUIMEA GROUP, S.A.
Avenida Premios Nobel, 53
E-28850 Torrejón de Ardoz, Madrid Email: hello@pulsarhri.com

Licensor may provide notices to Licensee by email, repository notice, website notice, package page notice, documentation site notice or any other reasonable means, and any such operational notice shall be effective when given.

25. Governing Law and Jurisdiction

This Agreement shall be governed by the laws of Spain, excluding its conflict of law rules.

Unless a Commercial Agreement states otherwise, the courts of Madrid, Spain shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement, the AUGUR Materials or any permitted or unauthorized use of them.

The United Nations Convention on Contracts for the International Sale of Goods shall not apply.

26. Injunctive Relief

Licensee acknowledges that any breach of the restrictions, confidentiality obligations, intellectual property provisions or unauthorized Commercial Use may cause irreparable harm to Licensor for which monetary damages may be inadequate.

Licensor may seek injunctive, equitable or interim relief without the need to post bond or prove actual damages, in addition to any other rights or remedies available.

27. Severability

If any provision of this Agreement is held invalid, illegal or unenforceable, the remaining provisions shall remain in full force and effect.

The invalid, illegal or unenforceable provision shall be replaced or interpreted to achieve, as closely as legally possible, the original commercial and legal intent of the provision.

28. Waiver

Failure or delay by Licensor to enforce any provision of this Agreement shall not constitute a waiver.

Any waiver must be in writing and shall apply only to the specific instance for which it is given.

29. Entire Agreement

This Agreement constitutes the entire agreement between Licensor and Licensee regarding the ADL and supersedes all prior or contemporaneous understandings regarding the ADL.

For Commercial Use, this Agreement together with the applicable Commercial Agreement constitutes the entire agreement between the parties regarding the ACL.

No purchase order, procurement term, online term, general condition or other document issued by Licensee shall modify this Agreement unless expressly accepted in writing by Licensor.

30. Modifications to this Agreement

Licensor may update this Agreement from time to time.

New versions of the AUGUR Materials may be distributed under updated terms published with those versions or on the relevant repository, package page, documentation site or download portal.

Subject to any express contrary provision in a Commercial Agreement, Licensee's continued download, installation, access, execution or use of any such new version of the AUGUR Materials after those updated terms are made available constitutes acceptance of the updated terms for Licensee's continued download, installation, access, execution or use of that version.

Commercial Agreements may specify whether and how updated terms apply to commercial deployments.

31. Interpretation

Headings are for convenience only and do not affect interpretation.

Words such as "including" and "including without limitation" are illustrative and not limiting.

References to "use" include access, installation, execution, copying, loading, processing, running, testing and interacting with the AUGUR Materials.

References to "written" or "in writing" include electronic form unless prohibited by applicable law.

32. Summary of License Modes

This Section is provided for convenience only. In case of conflict, the full terms above control.

Use case	ADL	ACL required
Internal development	Permitted	Not required
Internal evaluation	Permitted	Not required
Internal research	Permitted	Not required
Automated build download	Permitted	Not required
CI/CD execution	Permitted	Not required
Headless CI runners	Permitted	Not required
Per-commit validation	Permitted	Not required
Developer workstations	Permitted	Not required
Non-centrally administered developer machines	Permitted	Not required
Internal artifact caching	Permitted	Not required
Internal containerized testing	Permitted	Not required
Production deployment	Not permitted	Required
Paid services	Not permitted	Required
SaaS or hosted access	Not permitted	Required
Redistribution to third parties	Not permitted	Required
Bundling in a commercial product	Not permitted	Required
Customer-facing validation service	Not permitted	Required
Reverse engineering	Prohibited	Prohibited unless expressly authorized
Decompilation	Prohibited	Prohibited unless expressly authorized
Deriving or reproducing proprietary data/models	Prohibited	Prohibited unless expressly authorized
Training a competing model or digital twin	Prohibited	Prohibited unless expressly authorized

33. Acceptance

By downloading, installing, copying, accessing, executing or using the AUGUR Materials from any repository, package page, documentation site or download portal, Licensee acknowledges that it has read this Agreement, understands it and agrees to be bound by its terms.

If Licensee does not agree, Licensee must not download, install, copy, access, execute or use the AUGUR Materials.